

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: JS on 05/17/2026
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Joele Scott v. Miguel Lopez**
Superior Court Case No. 25CECG03449

Hearing Date: May 19, 2026 (Dept. 503)

Motion: Plaintiff Joele Tueno Scott's Motion to Quash Defendants Miguel Angel Saenz Lopez and Central Transport, LLC Third-Party Subpoenas

Tentative Ruling:

To quash third-party subpoenas to a) Antelope Valley College; b) Miami Dade College, Miami FL; c) University of Douala - Douala, Cameroon; and d) Saker Baptist College, Limbe, Cameroon.

To modify third-party subpoenas to a) California Health Sciences University, Clovis, CA; b) California State University Fullerton, Fullerton, CA; and c) LA Trade and Technical College, Los Angeles, CA, to read as follows:

All documents, records, report cards and transcripts pertaining to the education and scholastic ability of the individual named herein. All counseling, attendance and absentee records and medical records related to back pain Scott may have experienced starting 2015 or arising out of Scott's automobile accident on July 24, 2023.

To deny the request for sanctions.

Explanation:

Plaintiff, Joele Tueno Scott ("Scott" or "plaintiff") makes the following motion to quash and or modify subpoenas issued by defendants Miguel Angel Saenz Lopez and Central Transport, LLC (collectively "defendants") to the following third-party institutions:

- California Health Sciences University- Clovis, CA 93612
- California State University Fullerton-Registrars Office -, Fullerton, CA 92831
- LA Trade and Technical College - Los Angeles, CA 90015
- Antelope Valley College-Registrars Office -, Lancaster, CA 93536
- Miami Dade College-Registrars Office -, Miami, FL
- University of Douala - Douala, Cameroon
- Saker Baptist College - Limbe, Cameroon

This is a personal injury case, arising out of an automobile accident on July 24, 2023. Scott is seeking lost wages as a result of her injuries. Scott, who is a medical student, claims that she will lose \$4 million in future earnings because the injuries she allegedly sustained will prevent her from performing the kinds of procedures required in the specialty she originally was planning to pursue, ophthalmology. Instead, Scott claims that

she has been forced to apply to residency in a specialty with a lower compensation profile, psychiatry. Furthermore, Scott stated in her verified Responses to Form Interrogatories that she has experienced back pain "from time to time" since 2015. (Talebi Decl., ¶15, Ex. 3 at FROG 10.1.)

Defendants served subpoenas on every school Scott has attended since high school, seeking the following from each institution:

All documents, records, report cards and transcripts pertaining to the education and scholastic ability of the individual named herein. All office, disciplinary, counseling and scholastic records, attendance and absentee records, medical records, incident reports, teacher comments regarding the individual named herein from the first date of enrollment to and including the present."

(Adam Krolikowski Declaration, ¶11, Exhibit A.)

Scott served written objections to the subpoena pursuant to Code of Civil Procedure section 1985.3, asserting constitutional privacy rights, statutory privileges, overbreadth, lack of relevance, and procedural defects, including the Family Educational Rights and Privacy Act (FERPA), Education Code section 49076, the Confidentiality of Medical Information Act (CMIA), and the Health Insurance Portability and Accountability Act (HIPAA). Scott filed her motion to quash on December 19, 2025.

Code of Civil Procedure section 1987.1 states, in pertinent part:

If a subpoena requires ... the production of books, documents, or other things ... at the taking of a deposition, the court, upon motion ... may make an order quashing the subpoena entirely.... In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd. (a).)

Here, neither party argues that FERPA, Education Code section 49076, CMIA or HIPAA prevent disclosure. What is at dispute is whether the requests go beyond the framework of civil discovery rules and constitutional protections and whether the subpoenas are reasonable, narrowly tailored, and respectful of privacy interests.

California has numerous provisions recognizing medical record privacy and against disclosure of school records and transcripts, beginning with the California Constitution, Article I, Section I, which states: "All people are by nature free and independent and have inalienable rights. Among these are enjoying and defending life and liberty, . . . and privacy." (Cal. Const. art I, §1.) Where privacy rights are implicated, the requesting party must make a threshold showing that the records sought are directly relevant to a plaintiff's claims and are essential to the fair resolution of the lawsuit. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.) An order compelling disclosure must

be narrowly tailored so as not to infringe on constitutional rights. The party asserting privacy must establish the extent and seriousness of the prospective invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557 (“*Williams*”).)

Against that showing, the court must weigh the countervailing interests the opposing party identifies. (*Williams, supra*, 3 Cal.5th at 557.) The court considers the purpose of the information sought, the effect that disclosure will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure, and whether there are less intrusive means for obtaining the requested information. (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 755.)

Here, defendants' subpoenas go all the way back to 2004:

- California Health Sciences University - July 2022- current - graduation date May 2026 Doctor in Osteopathic Medicine)
- CSU Fullerton - Bachelor in Science of Nursing (2015 to 2016)
- LA Trade and Technical college - Associate of Science In Nursing (2011- 2015)
- Antelope Valley college - 2009 to 2011 - no degree
- Miami Dade College - 2008 to 2009 - pre med - no degree
- University of Douala - Bachelor in Public law (Cameroon)
- Alfred Saker High school - Douala (2004- high school diploma)

(Talebi Decl., ¶15, Ex. 3 at FROG 2.7.)

Defendants argue they need the aforementioned information spanning 22 years because Scott is now applying for residency in psychiatry rather than ophthalmology, which could substantially impact her potential future earnings. (Defendants Opposition, pg. 4, Ins. 16-20.)

With respect to the back injury Scott suffered in 2015, defendants argue:

“Plaintiff stated in her verified Responses to Form Interrogatories that she has experienced back pain since 2015. (Talebi Decl. at ¶15.) To the extent that any documentation exists in these records that Plaintiff missed classes, clinical rotations, or other prerequisites due to this preexisting condition, Defendants should not be prohibited from utilizing tools such as subpoenas that allow them to investigate these areas of inquiry that are reasonably calculated to lead to the discovery of admissible evidence.

(Defendants Opposition, pgs 4:27-5:4.)

Defendants have not shown how the entirety of Scott's educational records are directly relevant to her claims. The Court quashes subpoenas to the following four third-party institutions as the Court fails to see what relevance Scott's educational records prior to 2011 have with her ability to currently pursue a residency in ophthalmology. Furthermore, her attendance at these institutions occurred prior to back pain she suffered in 2015.

- Antelope Valley College, Lancaster, CA
- Miami Dade College, Miami, FL
- University of Douala - Douala, Cameroon
- Saker Baptist College, Limbe, Cameroon

With respect to the subpoenas to Scott's three most recent academic institutions,¹ the Court declines to modify the first clause of the subpoena, which reads:

All documents, records, report cards and transcripts pertaining to the education and scholastic ability of the individual named herein.

The Court declines to modify the first sentence of the Subpoena to these three institutions as they pertain to degrees Scott acquired, or is acquiring with respect to nursing, and there is a reasonable question pertaining to Scott's academic records that relate to Scott's candidacy to a residency position in an accredited ophthalmology program.

The Court modifies the second sentence to read:

All counseling, attendance and absentee records and medical records related to back pain Scott may have experienced starting 2015 or arising out of Scott's automobile accident on July 24, 2023.

This modification limits the request to Scott's 2015 back injury and the incident in question, as they are the two pertinent issues pertinent to the determination of Scott's potential earning capacity and her injuries.

With respect to sanctions, Code of Civil Procedure section 1987.2 provides the court may sanction the losing party to a motion to quash a subpoena where the motion was unreasonable or unmeritorious:

Except as specified in subdivision (c), in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.

(Code Civ. Proc., § 1987.2, subd. (a).)

¹ • California Health Sciences University, Clovis, CA
 • California State University Fullerton, Fullerton, CA
 • LA Trade and Technical College, Los Angeles, CA

Under these circumstances, the court finds that the motion was made and opposed with substantial justification, and as such no sanctions are warranted. (Code Civ. Proc., § 1987.2, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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